

Defendant No. 2

Name Kelly Gormley Shield # 6844
 Where Currently Employed 122 precinct
 Address _____

Defendant No. 3

Name Det. Vincent Demarko Shield # _____
 Where Currently Employed 122 precinct
 Address _____

Defendant No. 4

Name P.O. Michael Meunad Shield # _____
 Where Currently Employed 122 precinct
 Address _____

Defendant No. 5

Name _____ Shield # _____
 Where Currently Employed _____
 Address _____

II. Statement of Claim:

State as briefly as possible the facts of your case. Describe how each of the defendants named in the caption of this complaint is involved in this action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. Attach additional sheets of paper as necessary.

A. In what institution did the events giving rise to your claim(s) occur?

Police Officer ~~P.O.~~ Mehmet Kanbur strangled me
in a violent manner and wouldn't let go

B. Where in the institution did the events giving rise to your claim(s) occur?

It occurred in apartment 25
30 Ebbetts street Staten Island NY
10306

C. What date and approximate time did the events giving rise to your claim(s) occur?

August 10, 2015 About 10 A.m.

D. Facts: They Came For a domestic violence Issue
 while I was holding the Door PO Mehmet
 Kanbur did a martial arts arm lock choke hold and
 slammed me against the wall strangling
 me forcing me to fight him off me because
 he kept squeezing my throat and wouldn't let go
 Officer PO Mehmet Kanbur strangled me
 his partner a female who called for Backup
 grabbed my right arm

What
happened
to you?

Who did
what?

Was
anyone
else
involved?

Juwana M Brown
 his female partner I think Kelly Gromky
 and about 12 other officers

Who else
saw what
happened?

Juwana Brown there saying I assaulted. Told them
 not to enter her house and that there was no assault
 and the lady that lives in front of the elevator
 named Lorain heard a detective tell the officers to
 explain it in such a way so it sounds like Mr Aponte
 assaulted you because there was no detectives at my house
 like they put on the paper works they punched my girl
 because she was taking pictures. They threatened her at the hospital
 If you sustained injuries related to the events alleged above, describe them and state what medical treatment, if
 any, you required and received. I had bruises on my throat and took
 and my right elbow but the cops beat me for a
 syke doctor for evaluation saying I was crazy
 at 2 hospitals

IV. Exhaustion of Administrative Remedies:

The Prison Litigation Reform Act ("PLRA"), 42 U.S.C. § 1997e(a), requires that "[n]o action shall be brought with respect to prison conditions under section 1983 of this title, or any other Federal law, by a prisoner confined in any jail, prison, or other correctional facility until such administrative remedies as are available are exhausted." Administrative remedies are also known as grievance procedures.

A. Did your claim(s) arise while you were confined in a jail, prison, or other correctional facility?

Yes ___ No /

If YES, name the jail, prison, or other correctional facility where you were confined at the time of the events giving rise to your claim(s).

B. Does the jail, prison or other correctional facility where your claim(s) arose have a grievance procedure?

Yes _____ No _____ Do Not Know _____

C. Does the grievance procedure at the jail, prison or other correctional facility where your claim(s) arose cover some or all of your claim(s)?

Yes _____ No _____ Do Not Know _____

If YES, which claim(s)? _____

D. Did you file a grievance in the jail, prison, or other correctional facility where your claim(s) arose?

Yes _____ No _____

If NO, did you file a grievance about the events described in this complaint at any other jail, prison, or other correctional facility?

Yes _____ No _____

E. If you did file a grievance, about the events described in this complaint, where did you file the grievance?

1. Which claim(s) in this complaint did you grieve? _____

2. What was the result, if any? _____

3. What steps, if any, did you take to appeal that decision? Describe all efforts to appeal to the highest level of the grievance process. _____

F. If you did not file a grievance:

1. If there are any reasons why you did not file a grievance, state them here: _____

Didn't happen in Jail it happened
in my Apartment

2. If you did not file a grievance but informed any officials of your claim, state who you informed,

when and how, and their response, if any: _____

- G. Please set forth any additional information that is relevant to the exhaustion of your administrative remedies. _____
- _____
- _____
- _____
- _____
- _____

Note: You may attach as exhibits to this complaint any documents related to the exhaustion of your administrative remedies.

V. Relief:

State what you want the Court to do for you (including the amount of monetary compensation, if any, that you are seeking and the basis for such amount).

I want perjury Charges
Assault, harassment, Attempted Murder and Strangulation
Charges and an order of protection. as far
as Monetary Compensation I'm asking for
Twenty Million. even though my life is worth
more than twenty million isn't yours
worth more. I didn't deserve to be strangled
By this officer like they did to my Boy
eric gardner. I was put in a life or death
situation and had no choice but to fight
back.

VI. Previous lawsuits:

- A. Have you filed other lawsuits in state or federal court dealing with the same facts involved in this action?

Yes _____ No X

On
these
claims

- B. If your answer to A is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another sheet of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes ____ No ____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

On
other
claims

- C. Have you filed other lawsuits in state or federal court otherwise relating to your imprisonment?

Yes ____ No X

- D. If your answer to C is YES, describe each lawsuit by answering questions 1 through 7 below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same format.)

1. Parties to the previous lawsuit:

Plaintiff _____

Defendants _____

2. Court (if federal court, name the district; if state court, name the county) _____

3. Docket or Index number _____

4. Name of Judge assigned to your case _____

5. Approximate date of filing lawsuit _____

6. Is the case still pending? Yes ____ No ____

If NO, give the approximate date of disposition _____

7. What was the result of the case? (For example: Was the case dismissed? Was there judgment in your favor? Was the case appealed?) _____

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 1 day of December, 2015

Signature of Plaintiff

Inmate Number

Institution Address

John R. AponTE

5411501435

Otis bantum Correctional Center
1600 Hazen street
East elhurst NY 11370

Note: All plaintiffs named in the caption of the complaint must date and sign the complaint and provide their inmate numbers and addresses.

I declare under penalty of perjury that on this 1 day of December, 2015, I am delivering this complaint to prison authorities to be mailed to the *Pro Se* Office of the United States District Court for the Southern District of New York.

Signature of Plaintiff:

John R. AponTE

John R. Apple
Bate 541150435
1600 Hazen St
east elmhurst

RECEIVED
SDNY PRO SE OFFICE



Queens New York 11370

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SDNY

2016 JAN 7 PM 3:43

The Daniel Patrick Moynihan
United States Courthouse
500 Pearl Street Room 200
New York, NY 10007-1312